

(2) For the purposes of this Schedule a confinement shall be deemed to occur or have occurred on the date which is or was the date of the confinement.

2ND SCH.
—cont.

(3) In this Schedule the expression “before the appointed day” (unless preceded by the word “immediately”) means at a time either before the passing of this Act or between the passing of this Act and the appointed day.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
National Health Service (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 27.
National Assistance Act, 1948	11 & 12 Geo. 6. c. 29.

CHAPTER 30

An Act to provide for the federation of Southern Rhodesia, Northern Rhodesia and Nyasaland; and for purposes connected therewith. [14th July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same as follows:—

1.—(1) Her Majesty may by an Order in Council—

(a) provide for the federation of Southern Rhodesia, Northern Rhodesia and Nyasaland (in this section referred to as “the Territories”) and for that purpose—

Power by
Order in
Council to
establish
federation,
etc.

(i) provide for the establishment of a Federal Government, a Federal Legislature, an African Affairs Board, a Federal Supreme Court and such other Federal authorities as may appear to Her Majesty to be necessary or expedient;

(ii) confer or provide for conferring on the said Government, Legislature, Board, Court and authorities, and on any other Governments, Legislatures,

Courts and authorities, and in particular on the Governments, Legislatures, Courts and authorities of the Territories, such powers and duties as may be specified by or under the Order; and

(iii) provide for the restriction after the establishment of a Federal Supreme Court of the cases in which Her Majesty may grant special leave of appeal from the High Court of a Territory to Her Majesty in Council;

(b) amend the Letters Patent or Orders in Council relating to the government of the respective Territories, and so much of any Act of the Legislature of Southern Rhodesia as amends any such Letters Patent, in such manner as may appear to Her Majesty to be necessary or expedient having regard to the federation;

(c) make, or provide for the making of, such incidental, consequential and transitional provision as may appear to Her Majesty to be necessary or expedient as aforesaid, including, in particular, adaptations and modifications of any enactments, Orders in Council, orders, regulations and other instruments relating or referring to any of the Territories.

(2) An Order in Council under subsection (1) of this section may authorise the amendment or revocation of any of its provisions in any manner specified by the Order in relation to those provisions respectively and may apply all or any of the provisions of the Statutory Instruments Act, 1946, to any instrument made in pursuance of that authority, but save as may be so authorised that Order in Council shall not be capable of being revoked or amended except by Act of Parliament.

9 & 10 Geo. 6.
c. 36.

(3) Any increase attributable to an Order in Council under subsection (1) of this section or to any instrument made under that Order in sums payable under any other enactment out of moneys provided by Parliament or out of the Consolidated Fund of the United Kingdom or the growing produce thereof shall be paid out of moneys so provided or out of that Fund or the growing produce thereof, as the case may be.

(4) No Order proposed to be made under subsection (1) of this section shall be submitted to Her Majesty in Council unless a draft in the terms thereof has been laid before each House of Parliament and each House has presented an Address to Her Majesty praying that the Order be made.

Short title.

2. This Act may be cited as the Rhodesia and Nyasaland Federation Act, 1953.

